

TENTATIVE RULING

Case: **In re Sanbeck**
 Case No. PR2026-0094

Hearing Date: **July 24, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner Yasmine Howerton’s motion for limited protective relief notwithstanding appeal and for appointment of special administrator is **DENIED**. (Prob. Code, §§ 1310, subd. (b), 8540, 8544.) First, petitioner has not shown that this Court can issue a protective order, pursuant to Probate Code section 1310(b), preventing certain actions in a related civil case. (Ps & As, pp. 6-7.) Second, the Court does not consider petitioner’s request for letters of special administration within this motion because it was not submitted on mandatory Judicial Council form DE-111. (Cal. Rules of Court, rule 1.31; Motion, pp. 7-8.) The Court will review petitioner’s amended petition for letters of administration, filed on July 15, 2026, separately.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV2022-1963

Hearing Date: **July 24, 2026** **Department Eight** **1:30 p.m.**

Plaintiff Xinyao Zhou’s motion for reconsideration and motion for leave to file fourth amended complaint are **STAYED**, pending resolution of plaintiff’s appeal, filed on June 25, 2026, Third District Court of Appeal Case No. C106663. (Code Civ. Proc., §§ 1008, subd. (a), 473, 576; Cal. Rules of Court, rule 3.1324.) As plaintiff’s motions involve matters embraced by the pending appeal, the Court does not have jurisdiction to rule on the motions. (Code Civ. Proc., § 916; *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 196-200; see also *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141 [“A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.”], citation and brackets omitted.)

The Court sets a review hearing re stay for **October 16, 2026**, at 9:00 a.m. in Department Eight.

The notices of motion do not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.